

Amendment No. 1 to HB1359

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1015*

House Bill No. 1359

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 2, Part 4, is amended by adding the following new section:

(a) To the extent not otherwise prohibited by state or federal statute, the department shall, through promulgation of rules in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, implement each of the following tenets. With respect to any foster child in the custody of the department of children's services or an agency that contracts with the department to place children in foster care, pursuant to this part, a foster child shall have the right:

(1) To go to school and receive an education that fits the child's age and individual needs;

(2) To benefit from appropriate care and treatment in the least restrictive setting possible;

(3) To live in a safe, healthy environment free from abuse, neglect, and pests;

(4) To report any violation of personal rights specified in this section without fear of punishment, interference, coercion, or retaliation;

(5) To receive medical, dental, vision, and mental health services as recommended by an appropriate professional, and to be informed about diagnoses and treatment options as is developmentally appropriate; and

(6) To be free from punishment in the form of restrictions on or supervision of contact with any legal representative, including any appointed guardian ad litem, attorney ad litem, or appointed counsel with whom the foster child has a right to confidential communication.

(b) The department shall train all employees of the department who come in contact with foster children regarding this section. All current employees shall receive such training no later than February 1, 2026, and new employees shall be trained within thirty (30) days from the date of their employment.

(c)

(1) The department must, in consultation with stakeholders within the foster care system, develop materials to express the rights specified in this section and any other rights the department finds appropriate to children in foster care. The stakeholders must include foster care alumni from each grand division of this state.

(2) The materials must be age-appropriate and must clearly articulate the foster child's rights. The department must provide the child with the materials and explain the rights to the child within thirty (30) days of the child entering into the custody of the department and annually as a part of the permanency hearing required by § 37-2-409.

(3) The department must review and, if necessary, revise the materials at least every five (5) years.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.